

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.:
Date Purchased:

-----X
LEE VARGAS,

SUMMONS

Plaintiff,

Plaintiff designates
QUEENS County
as the place of trial.

-against-

THE CITY OF NEW YORK, P.O. GIGANTE, and
P.O. "JOHN DOES 1-5",

The basis of venue is:
Place of Occurrence

Defendants.
-----X

Plaintiff resides at:
516 Main Street
Stroudsburg, PA 18360

To the above named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
January 13, 2015



FRIEDMAN SANCHEZ, LLP
Attorneys for Plaintiff
LEE VARGAS
16 Court Street- 26th Floor
Brooklyn, New York 11241
(718) 797-2488

TO: THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

P.O. GIGANTE
C/O THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.:

-----X
LEE VARGAS,

VERIFIED COMPLAINT

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. GIGANTE, and
P.O. "JOHN DOES 1-5",

Defendants.
-----X

Plaintiff, LEE VARGAS, by his attorneys, FRIEDMAN SANCHEZ, LLP, complaining of the defendants, THE CITY OF NEW YORK, P.O. GIGANTE, and P.O. "JOHN DOES 1-5", alleges, upon information and belief as follows:

1. At all times herein mentioned, plaintiff, LEE VARGAS, was, and still is, a resident of the County of Monroe in the State of Pennsylvania.
2. At all times herein mentioned, defendant, THE CITY OF NEW YORK, was, and still is, a municipal corporation duly organized and existing under, and by virtue of, the laws of the State of New York, with the power and authority of carry out municipal functions including the maintenance and operation of a police department.
3. At all times hereinafter mentioned, defendant, THE CITY OF NEW YORK, operated and controlled a department known as THE NEW YORK CITY POLICE DEPARTMENT.
4. At all times hereinafter mentioned, defendants, P.O. GIGANTE and P.O. "JOHN DOES 1-5", were, and still are police officers under the employ of THE NEW YORK CITY POLICE DEPARTMENT and defendant, THE CITY OF NEW YORK.

5. Prior hereto on November 27, 2013, and within the time prescribed by law, plaintiff, LEE VARGAS, served a sworn Notice of Claim on the Comptroller of the City of New York stating, among other things, the time when and place where the damages were sustained, together with plaintiff's demands for adjustment thereof.

6. That on October 14, 2014, pursuant to General Municipal Law §50(h), a hearing was held.

7. Thereafter, said Comptroller of the City of New York refused or neglected for more than thirty (30) days, and up to the commencement of this action, to make any adjustment or payment thereof.

8. The present action is being commenced within one year and ninety days after the within claim arose.

AS AND FOR A FIRST CAUSE OF ACTION

9. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "8" above with the same force and effect as if fully set forth herein at length.

10. On or about October 17, 2013, plaintiff, LEE VARGAS, was arrested and viciously and violently beaten by defendants, P.O. GIGANTE and P.O. "JOHN DOES 1-5", officers of THE NEW YORK CITY POLICE DEPARTMENT, in front of the premises located at 49-09 25th Avenue, in the County of Queens, City and State of New York.

11. Thereafter, plaintiff, LEE VARGAS, was detained by said officers, who transported him, upon information and belief, to the 114th Precinct, where he was held for several hours before being arraigned.

12. At the time of the aforesaid beating, arrest and detention of plaintiff, defendants, P.O GIGANTE and P.O. "JOHN DOES 1-5", were acting within the scope of their authority and employment, and their acts hereinbefore alleged were done in furtherance of the business of, and in the interests of, defendant, THE CITY OF NEW YORK.

13. Said arrest and detention of plaintiff by said defendants constituted a false arrest and false imprisonment, done maliciously and/or negligently, without any warrant or pretense of legal process, and without any reasonable or probable cause therefore.

14. That, defendants had actual knowledge of the lack of a lawful basis on which to arrest and detain plaintiff and/or willfully ignored, or were negligent in failing to observe, clear warning signs of the lack of any such lawful basis.

15. Said negligence and deliberate indifference of defendants caused plaintiff to suffer emotional distress and humiliation, mortification, shame, disgrace, and mental pain, for which he has sought, and may seek in the future, medical and therapeutic care and treatment.

16. As a result of the foregoing, plaintiff demands judgment against defendants in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A SECOND CAUSE OF ACTION

17. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "16" above with the same force and effect as if fully set forth herein at length.

18. In the course of plaintiff's aforesaid arrest, defendants, P.O GIGANTE and P.O. "JOHN DOES 1-5", officers of THE NEW YORK CITY POLICE DEPARTMENT, physically assaulted plaintiff, by, among other things, intentionally striking plaintiff in the head causing him

to fall to the ground striking his face and kicking plaintiff in the back, head and face while he was on the ground.

19. Said acts of assault committed by defendants, P.O GIGANTE and P.O. "JOHN DOES 1-5", occurred notwithstanding the lack of any resistance on the part of the plaintiff.

20. As a result of said defendants' assault of plaintiff, plaintiff was caused to suffer emotional distress and humiliation, mortification, shame, disgrace, and mental pain, for which he has sought, and may seek in the future, medical and therapeutic care and treatment.

21. As a result of the foregoing, plaintiff demands judgment against defendants in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

22. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "21" above with the same force and effect as if fully set forth herein at length.

23. Upon information and belief, defendants knew, or in the exercise of reasonable care, should have known that the criminal charges brought by said defendants against plaintiff lacked any basis in law or fact.

24. Defendants intentionally, wantonly, maliciously and falsely prosecuted plaintiff for several criminal charges.

25. As a result of said defendants' assault of plaintiff, plaintiff was caused to suffer emotional distress and humiliation, mortification, shame, disgrace, and mental pain, for which he has sought, and may seek in the future, medical and therapeutic care and treatment.

26. As a result of the foregoing, plaintiff demands judgment against defendants in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

27. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "26" above with the same force and effect as if fully set forth herein at length.

28. Defendant, THE CITY OF NEW YORK, failed to exercise reasonable care in selecting defendants, P.O. GIGANTE and P.O. "JOHN DOES 1-5", as police officers and in training said defendants in the skills necessary to exercise their authority.

29. Prior to, and during the acts herein complained of, defendant, THE CITY OF NEW YORK, knew, or in the exercise of reasonable care, should have known of the propensity of defendants, P.O. GIGANTE and P.O. "JOHN DOES 1-5", to act unlawfully in the pursuit of their duties and functions.

30. Notwithstanding the foregoing, defendant, THE CITY OF NEW YORK, entrusted the power and authority to act as police officers to defendants, P.O. GIGANTE and P.O. "JOHN DOES 1-5", and subsequently failed to adequately supervise said defendants in the exercise of their duties and functions.

31. By reason of the said negligence of defendant, THE CITY OF NEW YORK, plaintiff was falsely arrested, falsely imprisoned, and/or physically assaulted by defendants, P.O. GIGANTE and P.O. "JOHN DOES 1-5", causing injuries both physical and mental from which plaintiff has suffered and continues to suffer.

AS AND FOR A FIFTH CAUSE OF ACTION

32. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "31" above with the same force and effect as if fully set forth herein at length.

33. Defendants' negligent and/or intentional acts and/or omissions while acting under color of state law, subjected plaintiff to an unreasonable search and seizure, false arrest, false imprisonment, and malicious prosecution in violation of plaintiff's rights under the United States Constitution and the New York State Constitution.

34. Defendants, their servants, agents, and/or employees, acted with malicious and wanton and/or negligent disregard of the constitutional rights of plaintiff secured by the fourth and fourteenth amendments of the United States Constitution and the New York State Constitution.

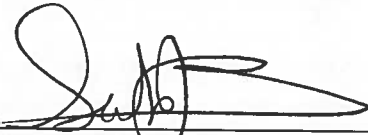
35. By reason of the foregoing, defendant, THE CITY OF NEW YORK, its servants, agents and/or employees, violated 42 U.S.C. §1983.

36. Pursuant to 42 U.S.C. §1988, plaintiff is entitled to a reasonable allowance for attorneys' fees.

37. As a result of the foregoing, plaintiff demands judgment against defendants in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, plaintiff demands judgment against the defendants in an amount that exceeds the jurisdictional limits of all lower courts, together with punitive damages, interest, and the costs and disbursements of this action.

Dated: Brooklyn, New York
January 13, 2015

A handwritten signature in black ink, appearing to read 'S. Bruno', is written over a horizontal line.

SARAH J. BRUNO, ESQ.
FRIEDMAN SANCHEZ, LLP
Attorneys for Plaintiff
LEE VARGAS
16 Court Street- 26th Floor
Brooklyn, New York 11241
(718) 797-2488

ATTORNEY'S VERIFICATION

SARAH J. BRUNO, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

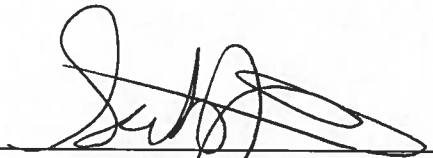
I am an attorney at **FRIEDMAN SANCHEZ, LLP**, attorneys of record for Plaintiff, **LEE VARGAS**. I have read the annexed

COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiff is that Plaintiff is not presently in the county wherein the attorneys for the Plaintiff maintain this office.

DATED: Brooklyn, New York
January 13, 2015


A handwritten signature in black ink, appearing to read 'Sarah J. Bruno', is written over a horizontal line. Below the line, the name 'SARAH J. BRUNO' is printed in a bold, sans-serif font.

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Plaintiff,

-against-

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Defendants.

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